11 — Non-disclosure agreement

Français (version de référence) : ../fr/11-accord-confidentialite.md

Header	
Publisher	Nhill Solution, Kinshasa (Democratic Republic of the Congo)
Version	3.0.0 — 28 October 2026
Status	written without review by a lawyer; recommended review points: V-02, duration and sanction (00 § 5). The French version is the reference text
Assumptions	H-10 (00 § 2)
Use	mutual agreement for exchanges with partners, contractors or businesses before a contract; the subject of the exchanges is stated at signature

Parties

Nhill Solution, with its head office in Kinshasa (Democratic Republic of the Congo), and the other signatory of this agreement, each being “a party”.

1. Purpose

The parties exchange information to assess a collaboration (partnership, trial, service). This agreement protects that information.

2. Confidential information

Any non-public information disclosed by a party, in any form: technical (code, architecture, security), commercial (prices, customers, projects), financial, personal data. Information is not confidential if it is: already public through no fault of the recipient; already known to the recipient; lawfully received from a third party; independently developed.

3. Undertakings

The recipient: uses the information only for the purpose; discloses it only to people who need it and are bound by the same secrecy; protects it at least as well as its own information; informs the other party of any unauthorised disclosure; returns or destroys the information on request. Disclosure required by law or by an authority is allowed, after informing the other party where the law permits.

4. No licence

No intellectual property right is granted. No obligation to enter into a contract arises from this agreement.

5. Duration

The confidentiality obligations apply from signature and for as long as the information has not become public through no fault of the recipient; source code and security information remain confidential without time limit.

6. Governing law

Law of the Democratic Republic of the Congo; search for an amicable solution, then the competent courts of Kinshasa.

Signatures

For Nhill Solution	For the other party
Name and position:	Name, position and organisation:
Subject of the exchanges:	E-mail address:
Date:	Date:
Signature:	Signature: